

TENTATIVE RULING

Case: **Munoz et al. v. Fairview Investment Fund VIII, LP et al.**
Case No. CV-2025-2796

Hearing Date: **February 27, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiffs Joseph Michael Munoz III, individually; Joseph Michael Munoz III and Kimberlee A. Puente, Trustees of the Guinane-Munoz-Puente Family Trust’s request for a preliminary injunction is **GRANTED**. (Code Civ. Proc., § 526 et seq.) Plaintiffs have shown that they are likely to suffer irreparable harm if the requested injunction is not issued. (*Costa Mesa City Employees' Assn. v. City of Costa Mesa* (2012) 209 Cal.App.4th 298, 305; *Intel Corp. v. Hamidi* (2003) 30 Cal.4th 1342, 1352; *Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528 [“The general purpose of such an injunction is the preservation of the status quo until a final determination of the merits of the action.”]; see also *West Coast Constr. Co. v. Oceano Sanitary Dist.* (1971) 17 Cal.App.3d 693, 700-701.) Plaintiffs have presented substantial evidence that they will be harmed absent injunctive relief. (Munoz, III, Decl., ¶ 11; see Complaint, ¶¶ 1-4 & 8-9.) The Court also finds an imminent threat of harm. (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084; Munoz, III, Decl., ¶ 11; see Stemm Decl., ¶¶ 14, 16, Exhibits 9, 11.)

Further, plaintiffs have established a reasonable probability that they will prevail on the merits of their complaint. (Corp. Code, § 16403; *Butt v. State of California* (1992) 4 Cal.4th 668, 678; Munoz, III, Decl., ¶¶ 7, 8, 11, Exhibits 6, 7; see Stemm Decl., ¶¶ 5, 9 – 13, 16, Exhibits 1, 4 – 8 and 11; Complaint, ¶¶ 1-4 & 8-9.)

Finally, the Court finds that the balance of interim harm weighs in favor of plaintiffs’ request for injunctive relief. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 633; *Continental Baking Co., supra*, 68 Cal.2d at p. 528; Munoz, III, Decl., ¶¶ 3, 11, Exhibit 3; Stemm Decl., ¶¶ 5, 14, 16, Exhibits 1, 9, 11.)

Parties are **DIRECTED TO APPEAR** to determine an appropriate undertaking. (Code Civ. Proc., § 529.)

TENTATIVE RULING

Case: State of California, by and through the Department of Water
Resources v. Dougherty et al.
Case No. CV-2022-2005

Hearing Date: February 27, 2026 **Department Eleven** **9:00 a.m.**

Defendants Dan Dougherty, Neil Dougherty, AM Investors II, LLC, Stephen G. Meek, Karen A. Meek, Pheasant Investment Corporation, Upper Swanston Ranch, Swanston Properties, G. Erling Linggi as Trustee of Marilyn J. Linggi testamentary trust, WS2 Ranch, LLC, and Wooden Decoy, LLC's (collectively, "defendants") request for judicial notice ISO joint opposition to motions for possession is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (d), 453.) While the Court takes judicial notice of Request No. 1, the Court does not take judicial notice of Request Nos. 2-10 as the records are not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendants' objections to the declaration of Elizabeth Vasquez ISO joint opposition to motions for possession are **OVERRULED**.

Defendants' supplemental request for judicial notice ISO joint opposition to motions for possession is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are not relevant to the Court's determination of this motion. (*Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see *Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.) Plaintiff State of California, by and through the Department of Water Resources' ("plaintiff") objection to defendants' supplemental request for judicial notice is **OVERRULED AS MOOT** given the Court's ruling on the supplemental request.

The Court declines to consider the supplemental declaration of Kristen Renfro filed on December 3, 2025, as it was filed after the reply deadline. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1113(d); see also *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited]; *High Sierra Rural Alliance v. County of Plumas* (2018) 29 Cal.App.5th 102, 112 fn. 2.) As the Court is not considering the supplemental declaration of Kristen Renfro, the Court declines to rule on plaintiff's objection to the supplemental declaration.

Plaintiff's motion for order for prejudgment possession of property is **DENIED**. (Code Civ. Proc., § 1255.410.) Plaintiff has not shown that there is an overriding need for it to possess the property prior to the issuance of final judgment in the case and plaintiff will suffer a substantial hardship if the application for possession is denied or limited. (Cal. Const., art. I, § 19, subd. (a); Code Civ. Proc., §§ 1255.410, subd. (d)(2)(C); Vasquez Decl.; Ghannam Decl.; Memo. Pts. & Auths., pp. 8-10.) The Court further finds that the hardship plaintiff will suffer if possession is denied or limited does not outweigh any hardship on defendants that would be caused by the granting of the order of prejudgment possession. (Code Civ. Proc., § 1255.410, subd. (d)(2)(D); (Corfee Decl., ¶¶ 2-19.)